



CHAPTER xix.

An Act to extend the time for the compulsory purchase of lands and for the completion of the railways and works of the Seaforth and Sefton Junction Railway Company to provide for the leasing of the said railways to the Great Central and Great Northern Railway Companies jointly and for other purposes.

A.D. 1911.

[2nd June 1911.]

WHEREAS by the Seaforth and Sefton Junction Railway Act 1903 (in this Act referred to as "the Act of 1903") the Seaforth and Sefton Junction Railway Company (in this Act referred to as "the Company") were incorporated and were authorised to construct certain railways in the outskirts of the city of Liverpool connecting the Southport and Cheshire Lines Extension Railway with the Liverpool Overhead Railway:

And whereas by section 40 of the Great Central Railway Act 1904 (in this Act referred to as "the Act of 1904") the Company were authorised to construct certain deviation railways in substitution for a portion of the railways authorised by the Act of 1903 and also certain branch railways which were intended to provide communication between the railway of the Company and the lands of the Mersey Docks and Harbour Board and the Company were by the same Act required to abandon the construction of portions of the railways authorised by the Act of 1903:

And whereas by the Great Central Railway (Various Powers) Act 1909 (hereinafter referred to as "the Act of 1909") the Company were authorised to acquire further lands including lands

A.D. 1911. for the construction of an electrical generating station for working the traffic on their railways by electrical power:

And whereas by section 71 of the Act of 1904 it was provided that if the Company should not by the first day of January one thousand nine hundred and six have issued and raised the capital required for the construction of their railways authorised by the Acts of 1903 and 1904 and should not in the opinion of the Great Central Railway Company (in this Act referred to as "the Great Central Company") have made substantial progress towards such construction and in the event of the Company and the Great Central Company agreeing or an arbitrator reporting that the said capital had not been issued and such substantial progress had not been made the Great Central Company might exercise in the name and on behalf of the Company all the powers by the Acts of 1903 and 1904 conferred upon the Company for and in relation to the construction of the said railways authorised by the Acts of 1903 and 1904:

And whereas it was further provided by the said section 71 of the Act of 1904 that if the Great Central Company should exercise the said powers of the Company for the construction of the said railways they might apply thereto any moneys from time to time raised by them. And it was provided that in the event of the powers of the Company being exercised by the Great Central Company as aforesaid the Company should pay to the Great Central Company by half-yearly payments interest at the rate of three pounds ten shillings per centum per annum upon the amount expended by the Great Central Company in or upon the construction of the said railways. And it was further provided that such interest should be a first charge on the proportion of receipts arising from the traffic passing over the said railways and upon the Great Central Company's proportion of the receipts arising from any traffic exchanged between the Great Central Company and the Company by means of the said railways:

And whereas provision was also made by the said section 71 for the ultimate repayment by the Company to the Great Central Company of the money so expended by the Great Central Company upon the construction of the railways of the Company:

And whereas the Great Central Company in pursuance of their powers in that behalf contained in the said section 71 of

the Act of 1904 have purchased in the name of the Company the greater part of the lands required for the construction of the railways authorised by the Acts of 1903 and 1904: A.D. 1911.

And whereas it is expedient that the time now limited for the compulsory purchase of lands required for the railways and works of the Company authorised by the Acts of 1903 1904 and 1909 and for the completion of the said railways and works should be extended as in this Act provided:

And whereas it is expedient that the Company should be authorised to hold use and appropriate for the purposes of their undertaking the lands hereinafter described:

And whereas by section 62 of the Act of 1909 it was provided that the Company might grant to the Great Central Company and that Company might take a lease of the undertaking of the Company upon the terms and conditions in the heads of agreement set forth in the Second Schedule to the Act of 1909 and the said heads for the proposed lease provided that the term should be for nine hundred and ninety-nine years from the date of the completion of the railways of the Company and that the rent should be a sum equal to four per centum upon the items of expenditure thereafter specified or in certain events at a lower rate of interest:

And whereas it is expedient that the Great Northern Railway Company (in this Act referred to as "the Great Northern Company") should be authorised to join with the Great Central Company in taking a lease of the railways of the Company:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Seaforth and Sefton Junction Railway Act 1911. Short title.

2. Part II. (relating to extension of time) of the Railways Clauses Act 1863 is incorporated with and forms part of this Act. Incorporation of Part II. of Railways Clauses Act 1863.

3. In this Act the several words and expressions to which meanings are assigned by the Act partly incorporated herewith Interpretation.

A.D. 1911. have the same respective meanings unless there be something in the subject or context repugnant to such construction. And in this Act the expression—

“The Company” means the Seaforth and Sefton Junction Railway Company;

“The Great Central Company” means the Great Central Railway Company;

“The Great Northern Company” means the Great Northern Railway Company;

“The Act of 1903” means the Seaforth and Sefton Junction Railway Act 1903;

“The Act of 1904” means the Great Central Railway Act 1904;

“The Act of 1909” means the Great Central Railway (Various Powers) Act 1909.

Extension of time for compulsory purchase of lands and for completion of works authorised by Acts of 1903 1904 and 1909.

4. The time limited by section 83 of the Act of 1909 for the compulsory purchase of lands required for the railways and works authorised by the Act of 1903 (except in so far as the said railways were authorised to be abandoned by the Act of 1904) and for the compulsory purchase of lands required for the railways and works authorised by Part IV. of the Act of 1904 and the time limited for the compulsory purchase of the lands described in section 59 of the Act of 1909 is hereby extended for a period of two years from the twenty-second day of July one thousand nine hundred and eleven and the time limited by the said section 83 for the completion of the said railways and works is hereby extended for a period of three years from the same day and at the expiration of those periods respectively those powers shall cease.

Company may hold certain lands already acquired

5. The Company may hold and may use and appropriate for the purposes of the railways and works authorised by the Acts of 1903 and 1904 and for the general and extraordinary purposes mentioned in the Railways Clauses Consolidation Act 1845 so much of the following lands as may have been or may hereafter be acquired by them by agreement or on their behalf and are delineated on plans signed in duplicate by Mr. J. H. Whitley the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred one copy of which plans has been deposited in the Private Bill Office of

the House of Commons and one copy in the office of the Clerk of the Parliaments Provided that the said lands so acquired by the Company shall for the purposes of section 3 of the Housing of the Working Classes Act 1903 be deemed to have been acquired under the powers of this section The lands hereinbefore referred to and by this section authorised to be held used and appropriated are the following:—

A.D. 1911.

In the county of Lancaster—

Certain lands in the parish of Seaforth and the urban district of Waterloo-with-Seaforth together with the two messuages erected thereon known as numbers 31 and 33 Granville Road Seaforth:

Certain other lands in the said parish together with the three messuages erected thereon known as numbers 23 25 and 27 Caradoc Road Seaforth:

Certain other lands in the said parish together with the eight messuages erected thereon known as numbers 24 26 46 48 50 57 59 and 61 Granville Road Seaforth:

Certain other lands in the said parish together with the two messuages erected thereon known as numbers 29 and 31 Kendrick Street Seaforth.

6. Section 62 (Lease of Seaforth Company's undertaking to the Great Central Railway Company) and section 64 (Saving for Postmaster-General) of the Act of 1909 and the heads of the proposed lease from the Seaforth and Sefton Junction Railway Company to the Great Central Railway Company as set forth in the Second Schedule to that Act shall be read and have effect as if the names of the Great Central and Great Northern Railway Companies had been substituted therein for the name of the Great Central Company.

Lease of
Company's
undertaking
to Great
Central and
Great
Northern
Companies
jointly.

7. During the continuance of the lease of the undertaking of the Company by this Act authorised where traffic is conveyed by the Great Central Company partly over the railway of the Company and partly over the railways of the Great Central Company those railways shall for the purpose of calculating the maximum fares rates and charges be regarded as one railway and where traffic is conveyed by the Great Northern Company partly over the railway of the Company and partly over the railways of the Great Northern Company those railways shall

Rates for
traffic partly
on railways
of Company
and Great
Central
and Great
Northern
Companies.

A.D. 1911. for the purpose of calculating the maximum fares rates and charges be regarded as one railway.

Costs of Act. 8. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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